CASCADE, IOWA - November 3, 2026 - Source-linked research edition - Not adopted law

DRAFT ORDINANCE - Chapter 165 Definitions and Interpretation Amendment (November 3, 2026)

> **FOR REVIEW ONLY - NOT ADOPTED LAW.** Companion to the November 3, 2026 M-2 performance standards amendment. The City Attorney must reconcile this proposed section with the City's complete current ordinance, later amendments, and any adopted state code. This separate text is an **alternative ordinance vehicle** for definitions, not an additional enactment to be adopted without reconciling the integrated Section IV.

CITY OF CASCADE, IOWA
ORDINANCE NO. _____

AN ORDINANCE AMENDING SECTION 165.41 OF THE CITY OF CASCADE ZONING ORDINANCE TO DEFINE DATA CENTERS, MAJOR INDUSTRIAL FACILITIES, OPERATIONAL MEASURES, ENVIRONMENTAL RECEPTORS, AND REVIEW TERMS

BE IT ENACTED by the City Council of the City of Cascade, Iowa:

SECTION I. LEGISLATIVE PURPOSE AND AUTHORITY

The purpose of this amendment is to make terminology in the proposed M-2 Heavy Industrial District measurable, enforceable, and consistent with Iowa municipal zoning authority. Iowa Code §§414.1 through 414.3 allow municipal zoning for health, safety, and welfare while requiring uniform treatment of each class or kind of buildings within a district.[12] The definitions concern **physical land use and its measurable external effects**, not the identity of the applicant, industrial products, digital workloads, customers, or tenants.

SECTION II. ADDITIONS TO SECTION 165.41

Section 165.41 of Cascade's zoning ordinance would be amended to add these definitions. Existing definitions remain in effect unless expressly superseded by final adopted language. Headwords below are **proposed municipal definitions**, not representations that Iowa law already defines the complete phrase.

Data Center or High-Density Computing Facility: A building, structure, or portion thereof principally used for networked servers, electronic data processing, digital storage, artificial-intelligence, cloud, colocation, scientific, or cryptocurrency computing. Incidental computer rooms and telecommunications equipment subordinate to another principal use are excluded.

Major Industrial Facility: An M-2 use exceeding any one threshold in proposed §165.11(D)(8): 5 MW coincident demand, 25,000 gallons in any 24 hours, 2 MW aggregate stationary generation, or 5 MWh storage. Also includes a modification that crosses a threshold.

Material Expansion: A modification increasing an approved maximum by 20 percent or more for electrical demand, water demand, stationary generation, energy storage, exterior mechanical capacity, or developed building area, or crossing a Major Industrial Facility threshold for the first time.

Sensitive Receptor: An occupied dwelling, school, licensed child-care facility, hospital, nursing facility, place of worship, public library, public park facility, or comparable occupied use requiring protection from continuous industrial noise.

Ambient Noise / Baseline Sound: The sound environment at a designated receiving location without the regulated facility's incremental contribution, determined under representative day, night, and meteorological conditions. Ambient noise is not the Iowa air-quality term "ambient air."[34]

Facility-Attributable Noise: The sound contribution attributable to a regulated M-2 use at the specified receiving point, including reasonably foreseeable simultaneous operation of equipment; exclude unrelated transportation, natural, and third-party background noise through an approved, documented acoustical procedure.[4]

dBA: A-weighted decibels of sound pressure, measured with calibrated equipment using the applicable professional noise measurement method.

dBC: C-weighted decibels of sound pressure, which place greater relative weight on low-frequency sound than A-weighting.

Hourly Average Sound Level (Leq,1h): The energy-equivalent continuous sound-pressure level over sixty (60) minutes, expressed using the specified A- or C-weighting; intermittent contributions are averaged on an acoustic energy basis, not by taking an arithmetic mean of decibel values. The qualified professional shall identify source operation, background sound, measurement location, and calibration.[4]

Prominent Tone / Tonal Noise: An identifiable recurring or steady audible frequency component distinguishable from neighboring sound bands when evaluated under the ordinance's specified professional acoustical method.

Acoustic Study: A qualified professional's documented baseline survey, maximum-design-operation model, receptor analysis, assumptions, equipment schedule, and verification protocol.

Maximum Anticipated Coincident Electrical Demand: The greatest reasonably anticipated simultaneous electrical load, expressed in MW, for the complete site during normal or design-maximum operation. A sum of independent equipment nameplate ratings does not establish coincident site demand without a documented load calculation.

Aggregate Stationary Generation Capacity: The sum of rated electrical outputs of all stationary generators covered by the section, in megawatts, excluding fire pumps only where expressly provided.

Aggregate Electrical-Energy-Storage Capacity: The summed rated stored electrical energy of covered stationary storage systems, in megawatt-hours, using documented nameplate energy ratings.

Exterior Mechanical Equipment: Permanently located outdoor fans, compressors, cooling equipment, generators, transformers, heat-rejection systems, and comparable mechanical installations serving an M-2 principal use.

Property Boundary / Lot Line: The legally established boundary of the parcel under review as supported by a recorded plat, survey, deed, or other legally controlling boundary record.

Residential Zoning District Boundary: The official delineation between an M-2 parcel or district and land designated residential by the City's controlling zoning map.

Sensitive-Receptor Measurement Location: The specified exterior wall, occupied outdoor-use area, or other objectively identified receiving point at a sensitive receptor, documented on an approved site/acoustic plan.

Once-Through Cooling: A process in which municipal potable water passes through a cooling system once and is discharged rather than being recirculated for heat rejection.

Closed-Loop Cooling: A recirculating coolant system intended to keep working fluid contained, subject to any limited makeup or process losses specifically disclosed.

Emergency Response Plan: A written, site-specific plan documenting access, contacts, utility isolation, fuel, chemicals, battery systems, suppression, evacuation, spills, and coordination with first responders.

Decommissioning: The safe disconnection, dismantling, lawful removal, cleanup, and site restoration work required at the end of a covered facility's life.

Abandonment: Continuous cessation of a facility's principal approved industrial operation for the period specified in §165.11(G)(17), subject to its listed reasonable exceptions.

Financial Assurance: A surety, letter of credit, escrow, performance bond, trust, or other legally authorized and enforceable arrangement in a reasonable amount covering documented decommissioning and site restoration duties. The statutory definition applicable to sanitary-disposal facilities under Iowa Code §455B.301(9) does not itself grant the City authority to impose that requirement on M-2 data centers; a separate legal basis must be confirmed by the City Attorney.[5]

Independent Qualified Professional: An appropriately licensed or credentialed expert with relevant technical competence and no financial or managerial interest that would compromise independent evaluation.

Material Modification (for monitoring): A change in equipment, site layout, generation operation, or other covered operation reasonably likely to change the regulated environmental or infrastructure impact.

SECTION III. INTERPRETATION AND STATE-LAW DEFINITIONS

1. **City zoning definition governs locally.** The local definition of a data center does not import sales-tax eligibility or incentives under Iowa Code §423.3(95)(f). State tax definitions may inform terminology only within their legal scope.[6]
2. **Separate regulatory programs remain separate.** Terms relating to water allocation, air contaminants, hazardous substances, wastewater, and stormwater retain their state statutory or administrative meanings when those programs apply. State permit requirements remain applicable and are not replaced by this amendment.[7][8][9]
3. **Major industrial vs. major air source.** The City's proposed Major Industrial Facility classification is not the same as an air-permitting Major Stationary Source under Iowa Code §455B.131.[8]

4. **Special exceptions and variances.** Local definitions do not limit the Board of Adjustment's statutory authority under Iowa Code §414.12(2)-(4), including the 2025-added separate practical-difficulties test for qualifying numerical and dimensional variances.[10]
5. **No silent incorporation of dictionaries.** The 86-term glossary comparing Iowa law, Oxford, Merriam-Webster, Cornell Wex, and FindLaw's free Legal Dictionary is noncodified research. Where statutory text or an adopted definition controls, general-purpose dictionary definitions do not displace it.[3]
6. **Acoustic measurement.** The ordinance and any adopted compliance protocol shall specify a calibrated sound-level instrument, A/C-weighting, representative operating conditions, background adjustments, one-hour energy-equivalent average (Leq,1h), and qualified analysis of tonal sources. No claim is made that Iowa has enacted these particular numerical industrial noise limits.[11]
7. **Stormwater and local limits.** Any post-construction runoff requirement must observe Iowa Code §364.3(19), including applicable limitations on restrictions and financial responsibility for city-imposed more restrictive standards.[4]
8. **Existing lawful operations.** The amendment does not, by mere use of a dictionary definition, extinguish an otherwise lawful preexisting use or strip protections established under the controlling zoning ordinance and Iowa law.

SECTION IV. CONFLICTS AND SEVERABILITY

Other applicable municipal, county, state, and federal laws control within their proper jurisdiction. If a provision of this amendment is held invalid, the remainder shall remain effective to the extent it can operate independently.

SECTION V. EFFECTIVE DATE

This ordinance takes effect after passage, approval, and publication as Iowa law requires. It is **not effective while this document remains a proposal**.

Chicago-style numbered notes (noncodified)

Publication and reconciliation

- Current integrated M-2 amendment already includes these definitions in Section IV.
- This companion is provided for readers who want a separate §165.41 definitions ordinance. **Do not adopt both definitions sections independently without checking for duplication and conflicting effective dates.**
- The full definitions reference preserves 55 statewide terms, five legal concepts, and 26 proposed local definitions, with source links and original editorial dictionary comparisons.

1. Iowa General Assembly, *Iowa Code* §414.1 (2026), https://www.legis.iowa.gov/docs/code/2026/414.1.pdf. ↩
2. Iowa General Assembly, *Iowa Code* §§414.2-414.3 (2026), https://www.legis.iowa.gov/docs/code/2026/414.2.pdf and https://www.legis.iowa.gov/docs/code/2026/414.3.pdf. ↩
3. Oxford University Press, *Oxford English Dictionary*, https://www.oed.com/ (full-entry verification limited); Merriam-Webster, *Merriam-Webster.com Dictionary*, https://www.merriam-webster.com/; Cornell Law School, Legal Information Institute, *Wex*, https://www.law.cornell.edu/wex; FindLaw, *FindLaw Legal Dictionary*, https://dictionary.findlaw.com/; New York Law School, Mendik Library, guide to free legal dictionaries, https://libguides.nyls.edu/lowcostlegalresearch/freedict. Source-qualified editorial comparisons, not verbatim copyrighted definitions. ↩↩
4. Iowa General Assembly, *Iowa Code* §364.3(19) (2026), https://www.legis.iowa.gov/docs/code/2026/364.3.pdf. ↩↩↩↩
5. Iowa General Assembly, *Iowa Code* §455B.301(9) (2026), financial assurance instrument defined for sanitary disposal projects only; this statute does not automatically authorize a municipal data-center decommissioning requirement, https://www.legis.iowa.gov/docs/code/2026/455B.301.pdf. ↩
6. Iowa General Assembly, *Iowa Code* §423.3(95)(f) (2026), data-center tax definitions, https://www.legis.iowa.gov/docs/code/2026/423.3.pdf. ↩
7. Iowa General Assembly, *Iowa Code* §455B.261 (2026), water allocation terms, https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. ↩
8. Iowa General Assembly, *Iowa Code* §455B.131 (2026); Iowa Department of Natural Resources, *Iowa Administrative Code* 567—22.1, https://www.legis.iowa.gov/docs/code/2026/455B.131.pdf and https://www.legis.iowa.gov/docs/iac/rule/02-25-2026.567.22.1.pdf. ↩↩
9. Iowa General Assembly, *Iowa Code* §§455B.381 and 455B.411 (2026); Iowa Department of Natural Resources, *Iowa Administrative Code* 567—60.1, https://www.legis.iowa.gov/docs/code/2026/455B.pdf and https://www.legis.iowa.gov/docs/iac/rule/567.60.1.pdf. ↩
10. Iowa General Assembly, *Iowa Code* §414.12(2)-(4) (2026), https://www.legis.iowa.gov/docs/code/2026/414.12.pdf. ↩
11. American National Standards Institute / Acoustical Society of America, *ANSI/ASA S12.9 Environmental Sound*, https://webstore.ansi.org/; choose precise part/edition upon acoustical review. ↩